

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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FLOYD WIGFALL,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. NATHANIEL ANTHONY, Shield No. 3172, Individually and in his Official Capacity, P.O. ELVIS MONTALVO, Shield No. 11286, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiff FLOYD WIGFALL, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff FLOYD WIGFALL is an African American male and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. NATHANIEL ANTHONY, P.O. ELVIS MONTALVO, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about February 9, 2012, at approximately 3:35 p.m. in the County of Bronx, City, and State of New York, plaintiff FLOYD WIGFALL was in the vicinity of Castle Hill Avenue and Turnbull Avenue, Bronx, New York.

9. At the aforesaid time and place, NYPD officers accosted plaintiff, searched him, and then immediately placed him under arrest with his arms handcuffed tightly behind his back.

10. At no time on February 9, 2012, did defendants possess probable cause to arrest plaintiff.

11. At no time on February 9, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search, placed in a holding cell, and charged with Criminal Possession of a Controlled Substance.

13. At no time on February 9, 2012, did plaintiff possess any controlled substances, commit any crimes or offenses, or behave unlawfully in any way.

14. Thereafter, defendants transported plaintiff to Central Booking where he was released following criminal court arraignment.

15. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Specifically, defendants falsely stated that plaintiff possessed: 1) a glassine containing a tan powdery residue; 2) two glassines containing a tan powdery residue and a green straw containing a white powdery residue; 3) a clear Ziplock bag containing a white powdery substance; and, 4) three small bags containing a dark green leafy substance. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

16. As a result of his unlawful arrest, plaintiff FLOYD WIGFALL spent approximately twenty-six (26) hours in custody and made approximately three (3) court appearances before all charges against him were dismissed in their entirety on May 23, 2012.

17. In addition, although plaintiff requested medical attention for his diabetes and access to his medication, defendants refused to provide plaintiff with medical treatment or his diabetes medication, causing his blood sugar to rise to a dangerously high level.

18. As a result of the foregoing, plaintiff FLOYD WIGFALL sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 DEPRIVATION OF FEDERAL RIGHTS

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

21. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

24. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. Defendants created false evidence against plaintiff.

27. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office.

28. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

29. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

30. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MALICIOUS PROSECUTION

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

33. Defendants did not make a complete and full statement of facts to the District Attorney.

34. Defendants withheld exculpatory evidence from the District Attorney.

35. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff FLOYD WIGFALL.

36. Defendants lacked probable cause to initiate criminal proceedings against plaintiff FLOYD WIGFALL.

37. Defendants acted with malice in initiating criminal proceedings against plaintiff FLOYD WIGFALL.

38. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff FLOYD WIGFALL.

39. Defendants lacked probable cause to continue criminal proceedings against plaintiff FLOYD WIGFALL.

40. Defendants acted with malice in continuing criminal proceedings against plaintiff FLOYD WIGFALL.

41. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

42. Specifically, defendants falsely alleged plaintiff possessed the aforementioned controlled substances.

43. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on or about May 23, 2012.

44. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
FALSE ARREST

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

47. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
UNLAWFUL SEARCH AND SEIZURE

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DELIBERATE INDIFFERENCE TO PLAINTIFF'S MEDICAL NEEDS

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. The defendants knew that plaintiff had health conditions which required him to be treated accordingly.

52. Notwithstanding this knowledge, the defendants refused to provide plaintiff with medical treatment and prevented him from accessing his prescribed medication for a prolonged period of time.

53. In so doing, the defendants exhibited a deliberate indifference to the health, safety, welfare and medical needs of plaintiff, in violation of plaintiff's constitutional rights as secured by the Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

54. As a result of defendants' deliberate indifference to the medical needs of plaintiff, plaintiff suffered serious physical injury.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

57. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and

58. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

61. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

62. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

63. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and

proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
April 16, 2015

BY: _____/S_____
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VERIFICATION

State of New York)
) s.s.:
County of New York)

FLOYD WIGFALL, being duly sworn, deposes and says that:

I am the plaintiff in the within action; and I have read the foregoing Summons and Verified Complaint and know the contents thereof; and the same is true to my own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe to be true.


FLOYD WIGFALL

Subscribed and sworn to before me
This 12 day of February, 2015



Notary Public

